

2:00 PM

LINE 13

26-CIV-01651

MOHAMMED YASIN VS. SUKHDEV SINGH DHILLON, ET AL.

MOHAMMED YASIN
SUKHDEV SINGH DHILLON

ERIC S RITIGSTEIN

MOTION FOR LEAVE TO FILE COMPLAINT-IN-INTERVENTION

TENTATIVE RULING:

Subject to any opposition credited by the court, the court will grant petitioner/proposed plaintiff-in-intervention Sentry Casualty Company's (Sentry) unopposed motion for leave to file a complaint-in-intervention once proper service on all parties is demonstrated or the other parties indicate that they do not oppose the motion.

The motion suffers from fatal procedural defects.

First, while there is a proof of service for the proposed order, there is no proof of service for the notice of motion, memorandum of points and authorities, and the declaration. Proofs of service must be filed five court days before the hearing. Second, in the notice of motion, Sentry did not put a hearing date for the motion and the clerk added the date of June 30, 2026 for the hearing. The court file shows a proof of service filed March 2, 2026 of the motion showing service of the motion on defendant on February 26, 2026. Thus, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Therefore, the other parties did not receive proper notice of the hearing date including notice showing the other parties being served with all documents (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].) Further: “[P]roof of service fulfills the function of establishing that ‘procedures implementing the constitutional requirements of due process were followed giving assurance that service really has been made.’” (*West v. West* (1979) 92 Cal.App.3d 120, 124, 154 Cal.Rptr. 667.) Accordingly, when adequate proof of service is available, it is of no legal import that a party actually may not have received notice. (*Ibid.*) That being the case, the courts are very strict in applying the statutory standards for proof of service; failure to strictly comply with those standards deprives the court of jurisdiction to act. (*Ibid.*)” (*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420.)

However, the right of Sentry to intervene is mandatory. Pursuant to Labor Code sections 3852 and 3853, Sentry, as the worker's compensation, has the statutory right to intervene in this action. Sentry has provided a proposed complaint in intervention.

Thus, if Sentry has properly served the motion, Sentry is to properly contest, file, serve, and email Department 4 by 11:00 a.m. on June 30, 2026 the documents showing proper service or if the other parties do not oppose the motion, they shall email Department 4 by 11:00 a.m. on June 30, 2026 that they do not contest the granting the motion and waive notice and Sentry shall appear at the hearing. If one of these conditions does not occur, then the court DENIES the motion without prejudice.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter counsel for Sentry shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 14

26-UDL-00484 DICKENS LIU, ET AL. VS. MAUNG SOE NAING, ET AL.

DICKENS LIU
MAUNG SOE NAING

ILENE M HOCHSTEIN
PRO SE

MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Pursuant to an email sent to Department 4 on June 26, 2026, plaintiff has withdrawn the motion for summary judgment. Thus, the matter is off calendar.

POSTED: 3:00 PM